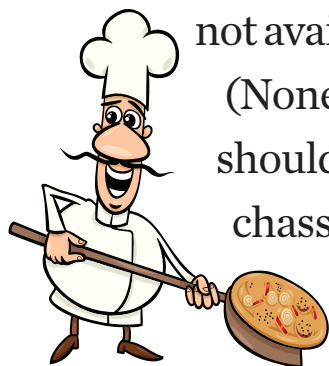
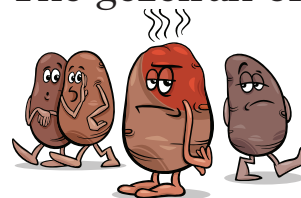




Chazal decreed that one may not consume three types of food prepared by a goy: bread products baked by a goy (known as pas akum or pas palter), food products cooked by a goy (bishul akum), and oil prepared by a goy.¹ The gezeirah of oil was not accepted by the majority of Klal Yisroel at the time of its enactment and Chazal subsequently removed it completely. The gezeirah of pas was also not accepted by the majority of Klal Yisroel, as bread is a staple necessary for survival and there were times when it was difficult to obtain bread baked by a Jew. Accordingly, Chazal



not available,² provided one is sure the product is kosher. (Nonetheless, as we will soon see, al pi kabbalah one should be extremely makpid to only eat pas Yisroel, and chassidim and many other Jews are indeed makpid in this regard.) With regard to bishul, the gezeirah remains in full force.

1 שבת יז, ב. עבודה זרה לה, ב-לו, ב.

2 ראה שו"ע יו"ד סי' קיב ס"ב.



Fit for A KING?

Frequently Asked Shaylos on
PAS YISROEL & BISHUL YISROEL

Potato chips

Net Wt. 10 OZ. (283.5 g)

THE CHABAD HOUSE



Chazal tell us that גדולה לגימה שמקרב

as it has the power to draw

people closer.³ People are generally relaxed at a meal setting and tend to share their thoughts and feelings with others at the table. Recognizing this power, Chazal put certain safeguards in place to ensure that the koach of food is properly harnessed.

The general reason for the issur of pas and bishul akum is to prevent feelings of indebtedness and closeness between a Jew and a goy, which could eventually lead to intermarriage, chas v'shalom.⁴ A secondary reason is that we are concerned that the goy may have added non-kosher ingredients to the food.⁵ It should be noted that while the underlying reason for both issurim (of pas and bishul) is the same, each one is subject to different rules and parameters, as will be explained below.

It goes without saying that in those areas where both stricter and more lenient opinions will be cited, as chassidim we will certainly endeavour to adhere to the stricter position whenever possible.

However, when guiding contacts and mekuravim who may not be ready to adopt every chumra, we may advise them to follow the more lenient view.

We will present a general overview of the topics of pas and bishul Yisroel; however, there are many details that will not be touched upon, as they are beyond the scope of this article. In cases of doubt, a rov should be consulted.

PAS YISROEL

Chazal set specific parameters on what constitutes pas. Pas is defined as a product made from any of the five grains (wheat, oats, spelt, rye, and barley),⁶ which has been ground into flour, made into dough, and then baked. Breads, pastries, cakes, cookies, and the like all fall into this category.

There are certain foods, such as pasta, that are made from the five grains but are cooked and not baked. Accordingly, they are not considered pas and are subject to the parameters of bishul akum instead (see below).

It should be noted that classifying a food as belonging to either category entails both a chumra and a kula. If a food is classified as pas, it has the kula of being permitted if no pas Yisroel is available, which does not apply to bishul akum. Conversely, if it is not classified as pas, it has the kulos of being permitted if it is not על שלחן מלכים or if it is edible raw (see below), which do not apply to pas akum.

There are certain cases where a dish will be subject to both categories, such as a potato knish. This is because it is essentially two types of food wrapped together: the dough is subject to the dinim of pas akum, while the potato filling is subject to the dinim of bishul akum.

3 סנהדרין קג, ב.

4 עבודה זרה לו, ב. תורת הבית ריש שער ה. וראה חכמת אדם כלל סה סעיף א בארוכה.

5 פתחי תשובה סי' קיג סק"א בשם הב"י.

6 י"ד סי' קיב ס"א.

QUESTIONS



WHY IS LUBAVITCH SO MAKPID ON PAS YISROEL?

ANSWER

It is brought down in the name of the Arizal⁷ that one who wants to be a chossid should be makpid that his sustenance from bread is derived from a holy source, i.e., that a Jew participated in the baking process. I personally heard from HaRav Yerushlavy that the Rebbe once told him: מקפיד אויף פת ישראל און חלב ישראל.⁸

Reb Yudel Chitrik a"h related⁹ that during World War I there was a shortage of bread in Rostov. Chassidim had a choice between obtaining bread from the local bakeries, where the bread was kosher but not pas Yisroel, and purchasing croissants from a Jewish lady who employed Jewish workers who were not frum.

Some of the chassidim asked the Rebbe Rashab: "Many of the Jewish employees who work for the Jewish lady do not wash negel vasser, and a ruach tum'ah rests on their hands.

Accordingly, perhaps it is preferable to obtain bread from one of the goyishe bakeries, because a ruach tum'ah only rests on the hands of a Jew and not of a goy."

"You are worried about a mere ruach tum'ah," the Rebbe Rashab responded. "The goyishe workers are the tum'ah itself!"



MAY WE SERVE NON-PAS-YISROEL TO OTHERS? DOES THIS CHANGE IF PAS YISROEL IS VERY HARD TO COME BY?

ANSWER

As stated in the introduction, pas palter is halachically permissible in places where pas Yisroel is not available. Accordingly, this question is not halachic in nature as much as it is a matter of perspective from a Lubavitch standpoint.

There is no answer that is one-size-fits-all, and each situation must be dealt with individually. This question is best answered by a Lubavitcher rov or mashpia, but, in any event, if one is serving a baked item that is not pas Yisroel, he should make this fact clear to his guests.



DO PRETZELS & CRACKERS NEED TO BE PAS YISROEL?

ANSWER

Yes.

The Shach defines pas as any baked item made using a thick batter (belilah avah) that has an appearance of bread (toar lechem).¹⁰ The Pri Chodosh writes that any item upon which one would have to make hamotzi if he were to establish a meal on it (kevius seudah) falls under the rubric of pas Yisroel.¹¹

The exact definition of toar lechem is not completely clear; however, the common consensus is to view pretzels and crackers as having the din of pas.



10 יו"ד סי' קיב סק"ח.

11 שם אות יז.

7 בשער המצוות (פרשת וילך): "מי שרוצה להיות חסיד צריך לנהוג בחומרות יתירות אע"פ שאינו מחוייב בהם כפי הדין... גם יזהר שלא לאכול פת של גוים אפי' מן הפלטר כלל, ואפי' בספיקו צריך ליהרר ולבדוק אם הפת שמוכר ישראל החנוני אם הוא מפלטר גוי". ובטעמי המצוות (פרשת עקב): "צריך אדם לשמור מאוד שלא לאכול לחם מפלטר כותי, ואפילו קוני מפלטר ישראל ואפילו בספק ואפילו אם קונה מפלטר ישראל צריך לחקור אם עשוי מישראל".

8 ראה היכל מנחם ח"א ע' רכז.

9 רשימות דברים' ע' 372 (במהדורה החדשה).

"The problem with a light bulb is that its primary function is to give off light and not heat. The heat is incidental to its primary purpose, demoting its capacity as a heker."



MAY ONE USE NON-PAS-YISROEL PAR-BAKED ITEMS?

ANSWER

Yes.

A par-baked item is a food that is initially underbaked with the intent of completing the baking process at home. Examples of baked goods potentially available in par-baked format are rolls, bagels, and pizza crusts.

The *Shulchan Aruch*¹² rules that one may return bread that has not been completely baked to the oven so that it should be considered pas Yisroel. Accordingly, if a (frum¹³) Jew completes the baking process of a par-baked item, the product becomes pas Yisroel.

This applies even if the food is technically edible in a case of duress but isn't ready to be served under normal circumstances.¹⁴ From my experience, this includes any item that

requires at least ten minutes of baking at home before serving. For items of lighter dough consistency and smaller size (such as small dinner rolls), if it requires at least six minutes of additional baking it is included in this category.

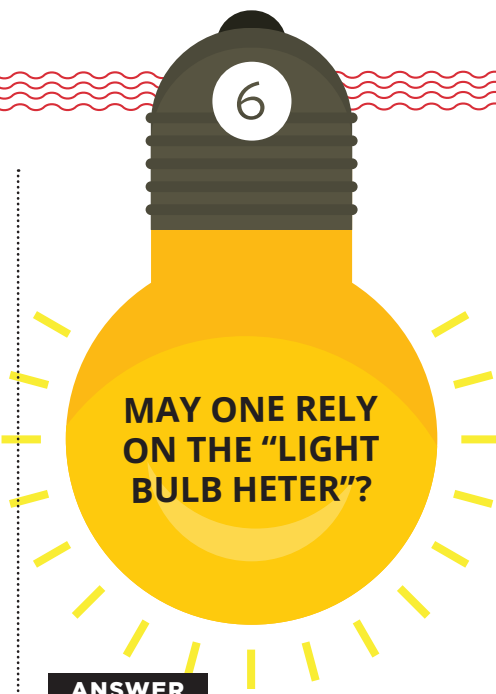
5

DOES TOASTING NON-PAS-YISROEL BREAD AT HOME MAKE IT PAS YISROEL?

ANSWER

No.

The nos'ei keilim on the above-mentioned ruling of the *Shulchan Aruch* explain¹⁵ that the heter of returning bread to the oven only helps if the Jew is completing the baking process, making the bread considerably more ready to eat than it had been beforehand. However if the bread was already fit to be served to guests, it is considered ready to eat and toasting it would not make it be considered pas Yisroel.¹⁶



ANSWER

It is preferable to avoid this heter.

The halachah is that if bread was baked by a goy but a Jew threw even a single piece of wood into the fire, the bread is considered pas Yisroel.¹⁷ Based on this, certain hechsherim rely on a heter in which a light bulb is placed in the company's oven. A Jew turns on the bulb, which adds a bit of heat to the oven, and the bulb remains lit the entire time, allowing whatever is baked inside to be considered pas Yisroel.

However, the (K) and certain other large hechsherim do not rely on this heter, and they question it for the following reason: The benefit gained by adding heat is that it serves as a heker, a reminder that the Jew must contribute to and be involved in the baking process.¹⁸ For the heat source to be discernible as a heker, it must be obvious that it was placed there to give off heat. The problem with a light bulb is that its primary function is to give off light and not heat. The heat is incidental to its primary purpose, demoting its capacity as a heker.

12 יו"ד ט"י קיב ט"ב.

13 The poskim discuss the din of a Jew who is mechalel Shabbos in public regarding bishul akum (see Pischei Teshuvah 113:1). This depends on the two reasons given for the gezeirah of bishul akum (as mentioned in the general introduction to this article): If the reason is due to chasnus, there is no issue with a non-frum Jew, as one may marry his daughter. However, if the reason is that he may mix non-kosher ingredients into the food, the concern still applies. On a practical level, a rov should be consulted.

14 ערוך השולחן יו"ד שם סעיף כח.

15 ראה גליון מהרש"א על השו"ע שם.

16 In Hilchos Shabbos (Orach Chaim, Siman 253) there is a concept called mitz'tamek veyafeh lo. This indicates that although the food can be eaten as is, if it cooks for longer it will taste better. Accordingly, although toasting bread does not make it be considered pas Yisroel, if a person is in a situation where he is eating non-pas-Yisroel bread, toasting the bread is a preferred option. This method is not equal to eating authentic pas Yisroel, but it may be useful in cases where one has no other choice. On a practical level, one should discuss this matter with his personal rov for guidance.

17 שו"ע יו"ד ט"י קיב ט"ט.

18 ראה לשון השו"ע שם (מורמב"ם הלכות מאכלות אסורות פ"ז ה"ג): "שאינן הדבר אלא להיות היכר שהפת שלהן אסורה".

7

CAN YOU MENTION THE NAMES OF SOME COMPANIES THAT MANUFACTURE PAS YISROEL PRODUCTS?

ANSWER

The following is a (partial) list of companies that manufacture (K)-certified products that are pas Yisroel:

- Angelic Bakehouse
- Davidovich Bakery
- Always Bagels
(all products certified by (K))
- Bread City
- David's Bread

- Anny's Bread Factory (FL)
- Kontos Foods
- Mountain Bread
- O'Pelle Enterprises (FL)
- Spelt Right
- Wasa North America
(all Wasa crackers certified by (K))

Not every product manufactured by these companies is pas Yisroel; on the other hand, not always will "pas Yisroel" be featured on the package, even when it is indeed pas Yisroel. To determine whether a given (K)-certified product is pas Yisroel, you can visit ok.org/consumers/kosher-food-guide, select "Pas Yisroel" in the "All Categories" tab, and search for a product. A list of products and establishments will appear, with each entry specifying whether the product is pas Yisroel or not.

(Of course, the packaging must

display the correct (K) symbol as well.)

[Editor's note: If you are aware of additional pas-Yisroel products sold in national supermarkets in any country, please send the details to editor@compassmagazine.org.] >>>



THE REBBE'S NIGHTLY BAKERY VISIT

AT A CERTAIN POINT during the Rebbe's years in Paris, there was no pas Yisroel available in the city. Every night, at 2:00 a.m., the Rebbe would walk to the bakery, light the fire, and throw in a piece of wood. This was despite the fact that the bakery was located quite a distance from the Rebbe's residence and public transportation did not operate in the late hours of the night. Nevertheless, the Rebbe made his way by foot through the dark streets to provide the Yidden of Paris with pas Yisroel.

(*Yemei Melech*, Vol. 1, pp. 390-391)



בגימטריא תרי"ג .. תרי"ג מצוות שמרתי", היינו, שהגשמיות שלו היא בשביל הרוחניות, ובמילא, ההתלהבות וההתלהטות היא במילוי שליחותו של הקב"ה, ולא בההנאה הגשמית וגופנית שבדבר, שזהו חלקו של עשו. זהו ענין פת עכו"ם ששייך לעשו שצריך ליזהר מזה עכ"פ בעשייתו. וכיון שבכל יום ויום צריך להיות ענין התשובה, כמבואר בתניא שהתשובה דאיתמול לא מהני לגבי היום, וצריך להיות ענין התשובה כפי שהוא ביום זה ובשעות אלו הרי כשעומדים בכל יום בתנועה של תשובה, צריך לידע שההכנה לזה היא הזהירות מ"פת עכו"ם", ועי"ז נעשית גם הזהירות משאר ענינים בלתי־רצויים, כמובן מדברי הגמרא ש"גזרו על פתן .. משום דבר אחר (ע"ז)".

משיחת י"ב תמוז תשי"ד (תורת מנחם ח"ב ע'
105-106)

התוכן הפנימי של פת עכו"ם

ישנו פתגם בשם אדמו"ר הזקן (אף שלא שמעתי מחסידים ומכ"ק מו"ח אדמו"ר) שראיתי בספר שו"ת לא' מרבני גליצ'י, וז"ל: "שמעתי בשם הגה"ק הרב בעל התניא במה דאיתא בשו"ע דבעשיית יש ליזהר מפת עכו"ם, דהכונה דעכ"פ בעשיית צריכין ליזהר ממותרות דזהו פת עכו"ם, דהמותרות שייך לעשו".

והענין בזה:
איתא במדרש שיעקב אמר לעשו "שני אחים אנחנו לאבינו, ושני עולמות יש לפנינו, העוה"ז והעוה"ב .. טול אתה העוה"ז ואני אטול העוה"ב".

כלומר: אין הכוונה שיעקב אין לו שייכות לעולם הזה; בודאי יש גם ליעקב גשמיות, וכמ"ש "ויהי לי שור וחמור וגו'", אלא שאצל יעקב הרי זה באופן ש"עם לבן גרתי", "גרתי

THE DEEPER MEANING OF PAS AKUM

I ONCE SAW A PISGAM in the name of the Alter Rebbe quoted in a sefer of shaalos u'teshuvos from a Galician Rov (although I did not hear it from chassidim or from the [Frierdiker] Rebbe):

"The *Shulchan Aruch* rules that during the Aseres Yemei Teshuvah one should avoid consuming pas akum. The meaning of this is as follows: During the Aseres Yemei Teshuvah, one should avoid indulging in mosros, which is the idea of pas akum, as they are in the jurisdiction of Esav."

We can explain this pisgam as follows:

The Midrash relates that Yaakov said to Esav: "We are two brothers, and there are two worlds before us, this world and the World to Come. You take this world, and I will take the World to Come."

This does not mean that Yaakov is not associated with this world. Certainly Yaakov possesses gashmiyus, as the possuk says that he had oxen, donkeys, and so on. However, Yaakov's gashmiyus is primarily for the sake of ruchniyus. Accordingly, his excitement and koch is focused on fulfilling Hashem's shlichus, and not on the physical pleasure involved, which is the portion of Esav.

This [koch in gashmiyus] is the concept of pas akum, which is in the jurisdiction of Esav and which one must avoid at least during the Aseres Yemei Teshuvah.

Tanya explains that the teshuvah one performed yesterday does not help for today, and one must perform teshuvah on a daily basis. Accordingly, when one strives to achieve a state of teshuvah every day, he must know that the preparation is to refrain from "pas akum." By doing so, he will also avoid other unwanted matters, as the Gemara says that Chazal enacted the decree against pas akum lest one eventually serve avodah zarah.

(*Toras Menachem*, Vol. 12, pp. 105-106)

BISHUL YISROEL

BISHUL AKUM IS DEFINED IN *SHULCHAN ARUCH* AS FOOD cooked by a goy that has the inherent stature of being fit to be served at a formal meal, such as a wedding or state dinner. It is further defined as something that is eaten together with bread.¹⁹ The Rambam further describes it²⁰ as food one would invite his friend over to eat and which the friend would leave his house to consume. Food items such as meat, chicken, fish, and potatoes all fall into this category.

Another criterion for bishul akum is that the food must be inedible in its raw state.²¹ For example, eggs are included in this category, because they cannot be consumed raw.²² (Although some people may eat raw eggs, this is not a common phenomenon. To determine whether a certain foodstuff is edible in its raw state or not, halachah follows the majority of the people in the country one lives in.²³) Apples and carrots, on the other hand, may be cooked by a goy (on kosher equipment, of course) because they are edible in their raw state.

The reason for both of these criteria is because, as stated above, the primary reason for the prohibition of bishul akum is to prevent feelings of indebtedness and closeness between a Jew and a goy. Since one does not invite a friend over to eat food that is not fit to be served at a formal meal or that can be eaten raw, the gezeirah does not apply to these types of food.²⁴

There are two approaches how to judge whether a given dish is *bishul akum*. According to one approach, we look at the species. If it can be served on a royal table in any form, the species is subject to the halachos of bishul Yisroel even if this particular dish is not as elegant. An alternative view is to look at the final state of

the food and determine if it can be served on a royal table. If it doesn't qualify, even if this same species is served on a royal table when prepared differently, the given dish is not subject to bishul Yisroel.

There are several implications in *Shulchan Aruch* that l'halachah we follow the current state of the food; however, there is room to be machmir.²⁵

The parameters of bishul akum are not limited to food that was cooked; they include food that was baked,²⁶ fried,²⁷ or roasted²⁸ as well. Some poskim hold that if the food was prepared using an unconventional method of cooking or baking (such as steam cooking), the halachos of bishul akum do not apply.²⁹

25 ראה בכ"ז בארוכה בקובץ 'עם התורה' מהדורא ג' חוברת י"ד ע' עה ואילך. וכן שמעתי מהרב ווייסמאנדל והרב העלער שליט"א, דמוכח שלהלכה אזלינן בתר צורת המאכל כמו שהיא עכשיו, אבל יש מקום להחמיר.

26 ראה שו"ע יו"ד סי' קיב ט"א.

27 ערוך השלחן סי' קיג ט"ד.

28 ראה שו"ע סי' קיג ט"ב.

29 ראה המובא בדרכי תשובה יו"ד סי' קיג אות טז.

19 שו"ע יו"ד סי' קיג ט"א.

20 הלכות מאכלות אסורות פ"ז ה"ו.

21 שו"ע שם.

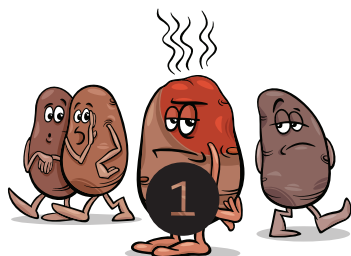
22 שו"ע שם ט"ד.

23 ערוך השלחן יו"ד שם ט"ב.

24 רמב"ם שם (בנוגע לדבר שאינו עולה על שלחן מלכים). ט"ז יו"ד סי' קיג ט"א (בנוגע לדבר

שנאכל כמו שהוא ח"י).

QUESTIONS



WHICH FOODS DO NOT NEED TO BE BISHUL YISROEL?

ANSWER

We will go through a number of common foods and discuss the halachos that apply to each one.

SNACKS (SUCH AS POTATO CHIPS)

Do not need to be bishul Yisroel; however, there is room to be machmir. The Darkei Teshuvah brings down from poskim³⁰ that anything classified as achilas araiy (i.e., a food eaten in a temporary manner), such as food eaten as a snack, does not need to be bishul Yisroel.

As mentioned in the introduction, the Rambam says that the benchmark of bishul Yisroel is if a friend would come over to eat this dish in its current state. It follows that since a person would not leave his house just to eat some chips (as opposed to a nice meal), they are not subject to the restriction of bishul akum. Furthermore, snacks are not eaten together with bread.

However, as mentioned there, there is room to be machmir in a case where the species itself can be served on a royal table. Potato chips fall under this category, since potatoes generally must be bishul Yisroel (when cooked),

and it is only due to the chips' current state that they are classified as a snack. Accordingly, if one can easily obtain bishul Yisroel potato chips, there is room to be machmir.

There is additional room to be lenient with Pringles potato chips, which are made from dehydrated potatoes.

COLD BREAKFAST CEREALS

Do not need to be bishul Yisroel; however, there is room to be machmir.

Nowadays, practically all cold breakfast cereals are cooked and then either steamed, extruded, or puffed. As mentioned in the introduction, many poskim hold that food prepared using such methods do not need to be bishul Yisroel. The Minchas Yitzchak writes³¹ that one may be lenient with steam cooking and the like that takes place in a factory setting. The reason for this is because according to a minority view in the poskim, there is no issue of bishul akum with food prepared in such places, because there is no concern that closeness between a Jew and

a goy will result. Although the halachah does not follow this opinion, it can be used as a snif to allow steam cooked foods prepared in factories.

Another element is the fact that cold cereals made from kitniyos such as corn or rice are not considered a royal food.³² Even those made from one of the five grains are not על שלחן מלכים, since they are made to be eaten with milk.

(There is no issue of Pas Yisroel with cereals made from one of the five grains; since they are not baked, they do not have the din of pas—see above, Introduction to pas Yisroel.)

However, some people are machmir to use bishul Yisroel cereals if they are available.



CANNED TUNA

From a practical point of view bishul akum is almost never the issue, because if a mashgiach is present he will also turn on the flame.

32 שו"ע ודמ"א י"ד סימן קיב ט"א. וראה בנו"כ שם שמתמא פת קטניות ואורז אינו עולה על שלחן מלכים. וה"ה בנדרי"ד. וראה ג"כ בסוף ספר 'שחרת מים' להר"ן טלושקין, ע' רנא ואילך.

31 ח"ג סימן כו אות ו. וראה שו"ת אגרות משה יו"ד ח"ד סימן מח אות ה.

"It follows that since a person would not leave his house just to eat some chips (as opposed to a nice meal), these items are not subject to the restriction of bishul akum."

With regard to canned tuna, the main question is not whether it is bishul Yisroel but whether it is kosher fish in the first place. Since canned tuna is skinless, it must be supervised by a mashgiach temidi who inspects every piece of fish to ensure it is kosher. Canned tuna with a hechsher will practically always also be bishul Yisroel, because once there is a mashgiach on premises, he will turn on the flame as well. Even in the remote case where the mashgiach did not turn on the flame, since the tuna is cooked via steam, the above-mentioned heter of the Minchas Yitzchak may apply (see below).

(It should be noted that while OK and chassidishe hechsherim will only provide a hechsher on tuna if a mashgiach temidi is present, there are other hechsherim, such as OU, that will give a hechsher on tuna without this condition. When in doubt, it is recommended to call the hechsher to determine its standard.)



CANNED SALMON

Unlike canned tuna, canned salmon does not require a mashgiach temidi because there is a kabbalah that the salmon's pink color is only found in kosher species. Consequently, bishul akum is a potential issue.

Since canned salmon is cooked via steam, the heter of the Minchas Yitzchak may apply (see above, "Cold Breakfast Cereals"). However, there is room to differentiate between an item directly cooked via steam (e.g., cereals) and one indirectly cooked via steam (e.g., canned salmon, in which the walls of the can are heated via steam, heating the water surrounding the salmon and cooking the salmon). The latter method of steam cooking may be viewed as a conventional form of cooking, and bishul akum would thus apply.

Accordingly, if one does not have access to bishul Yisroel salmon, a rov should be consulted.

OTHER CANNED FOODS

All canned foods are cooked via steam. However, since they are cooked via steam indirectly, the heter of the Minchas Yitzchak may not apply (see above, "Canned tuna or salmon").

However, many canned items are either not מלכים על שלחן or are edible in their raw state. In such cases, bishul akum is not an issue. When in doubt regarding a particular product, a Rov should be consulted.

SPICES

Do not need to be bishul Yisroel.

The issur of bishul akum does not apply to ingredients whose primary function is to enhance other foods and are not meant to be consumed on their own, because they are not considered as having chashivus. For example, spices and condiments do not need to be bishul Yisroel³³ (although condiments require a good hechsher, since they are processed).

COFFEE AND TEA

Do not need to be bishul Yisroel.

In general, coffee and tea do not pose a problem with regard to bishul akum. This is because the main body of the drink is the water, which can be consumed in its raw state, and the coffee and tea are added merely for flavoring purposes (see previous paragraph).³⁴

HOT WATER & OTHER HOT DRINKS

Do not need to be bishul Yisroel.

The Gemara says³⁵ that an adam chashuv should be machmir not to drink water heated up by a goy. A regular person, however, does not need to be machmir, because water can be consumed in an unheated state. The Pri

Chodosh writes³⁶ that l'halachah an adam chashuv may also drink water heated up by a goy.

Furthermore, drinks are in the category of achilas araiy and are not necessarily consumed as part of a meal. We see this from the concept mentioned by there is no ³⁷אין קבע לשתי' Chazal that fixed time for drinking (as opposed to food eaten in the course of a meal). Accordingly, drinks do not need to be bishul Yisroel (see above, "Snacks").



IS THERE ANY REASON TO AVOID HAVING A GOY HEAT UP A KETTLE OF WATER AND THE LIKE ON MY STOVE OR PLUGGING IN THE HOT WATER URN?

ANSWER

Yes.

It is preferable to avoid having a goy turn on the flame and cook on one's stove, even if the food is permissible (e.g., to heat up a kettle of water or to cook apples or carrots). The reason is because if the goy knows he may turn on the flame to cook certain substances, he may also cook other foods that are forbidden. (However, if the goy did cook something mutar, it may be eaten.)

33 ראה ערוך השלחן טכ"ג ודרכי תשובה סקט"ז לענין סוכר.

34 כבר שקויט בזה בפוסקים. וראה רשימות דברים (חיסוריק, ע' 101 בהוצאה החדשה) קבלה בשם כ"ק אדמו"ר מוה"ר"ן [בן הצמח צדק] בשם אדה"ו, שאין לחשוש בכוס תה משום בישול עכ"ם.

35 שבת נא, א.

36 יו"ד ט"י קיג סו"ט ד.

37 שבת ק"ח, א.

"From among these three options, it is preferable for the Jew to actually raise the flame, because this will cause any food subsequently cooked on that flame to be considered bishul Yisroel."



MAY ONE WITH A GAS STOVETOP LEAVE A LIT CANDLE FOR A NON-JEWISH HOUSEKEEPER TO USE FOR COOKING?

ANSWER

Lechatchilah, no; bedi'eved, yes under certain circumstances.

Lechatchilah, a Jew should contribute to the actual fire used for cooking, and not merely to the fire that was used to light the fire used to cook.

(This is called *אש מאש של ישראל*, where the goy lit a flame from a fire kindled by a Jew.) *אש מאש של ישראל* is only permissible bedi'eved or in cases of *sha'as hadechak*.³⁸ (Sephardim are machmir even bedi'eved, following the more stringent stance of the Mechaber in this matter.³⁹)

Another potential problem in this scenario is traceability. How does one know that the non-Jew used the candle to light the gas instead of simply turning on the flame? If one has a means by which to verify this (e.g., a

camera system), it would be permissible bedi'eved as stated above.

One can avoid this issue if one has a commercial stove (such as Viking) where there is a pilot flame near each burner that is always lit. In such a case, any burner turned on by the goy will be equivalent to raising a pre-existing flame, which is *mutar lechatchilah*. However, as stated above (see previous question), the best policy is to teach goyim not to turn on burners for any reason.



IS THERE ANY WAY ONE MAY COOK ON YOM TOV IF A GOY TURNED ON THE FLAME?

ANSWER

Yes.

There are three primary ways one can ensure that food being cooked is bishul Yisroel: (1) If a Jew turns on the fire or raises the flame. (2) If a Jew puts the cooking utensil (e.g., the pot) onto the fire. (3) If a Jew stirs the food once it is already on the fire.⁴⁰ Since a Jew is allowed to cook on yom tov but may not start a new fire (due to the issur of

nolad), a goy may turn on the flame, following which the Jew should do one of the three methods mentioned above.

(It should be noted that the Mechaber is of the opinion that kindling the flame is not sufficient.⁴¹ Accordingly, Sephardim are machmir to only consider food bishul Yisroel if the Jew placed the pot onto the fire or stirred the food.)

From among these three options, it is preferable for the Jew to actually raise the flame, because this will cause any food subsequently cooked on that flame to be considered bishul Yisroel. If he merely places the pot onto the fire or stirs the food, it will only help for the food in that particular pot and if a goy later puts another pot onto the fire, another action will be necessary.

(It should be noted that this option can only be chosen with a gas stove. One may not raise the flame of an electric stove on yom tov.)

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38 ערוך השולחן יר"ד סימן קיג טע"ף נד.

39 שו"ע שם ס"ז.

40 שו"ע שם ס"ז-ט.

41 שו"ע שם ס"ז.